

IN THE SENATE

SENATE BILL NO. 1224

BY TRANSPORTATION COMMITTEE

AN ACT

RELATING TO SLOW MOVING VEHICLES; AMENDING SECTION 49-619, IDAHO CODE, TO
PROVIDE AN EXCEPTION AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SEC-
TION 49-639, IDAHO CODE, TO REVISE PROVISIONS REGARDING TURNING OUT OF
SLOW MOVING VEHICLES; AND DECLARING AN EMERGENCY AND PROVIDING AN EF-
FECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-619, Idaho Code, be, and the same is hereby
amended to read as follows:

49-619. SLOW MOVING VEHICLES -- RESTRICTIONS AND EXCEPTIONS, EQUIP-
MENT -- EMBLEMS ON CERTAIN MACHINERY -- LIMITED EXEMPTION. (1) It shall be
unlawful to operate a slow moving vehicle on the highways at the following
times and under the following circumstances:

(a) From one-half (1/2) hour after sunset to one-half (1/2) hour before
sunrise, unless the vehicle or equipment is equipped with lights as re-
quired by section 49-916, Idaho Code;

(b) At a speed in excess of twenty-five (25) miles per hour, unless the
vehicle or equipment, including towed units of farm equipment, is de-
signed to safely travel at speeds in excess of twenty-five (25) miles
per hour, but no such vehicle or equipment shall exceed the posted maxi-
mum speed limit and shall be operated by a licensed driver; and

(c) In such a manner as to obstruct the free movement of traffic on the
highways except when the operator of a slow moving vehicle, farm trac-
tor, construction equipment, or implement of husbandry determines, in
the exercise of reasonable judgment based on roadway conditions, equip-
ment size, and safety considerations, that no safe or size-appropri-
ate location exists to temporarily exit the roadway or otherwise allow
traffic to pass.

(2) A slow moving vehicle shall be equipped with a braking system and
with a mechanical signaling device as required for other similarly con-
structed vehicles.

(3) All slow moving vehicles, farm tractors, road rollers, and imple-
ments of husbandry shall have affixed at the rear of the vehicle an emblem
identifying them as slow moving equipment. The Idaho traffic safety commis-
sion shall recommend to the board the minimum standards for the emblem.

(4) Emergency and snow removal vehicles owned and operated by the state
or its political subdivisions when en route to, from, or in the performance
of activities essential to the public safety, shall be exempt from the provi-
sions of paragraphs (a) and (c) of subsection (1) of this section.

SECTION 2. That Section 49-639, Idaho Code, be, and the same is hereby
amended to read as follows:

1 49-639. TURNING OUT OF SLOW MOVING VEHICLES. On a two-lane highway
2 outside an urban area where passing is unsafe due to oncoming traffic or
3 other conditions, the driver of a vehicle, including but not limited to a
4 vehicle traveling slower than the normal speed of traffic and, a slow mov-
5 ing vehicle, a farm tractor, construction equipment, or an implement of
6 husbandry, behind which three (3) or more vehicles are formed in line shall
7 turn off the roadway at the nearest place designated as a turnout or at the
8 next available location where it is safe and reasonable for the vehicle to be
9 pulled over in order to permit the following vehicles to pass. Such driver
10 shall not be deemed to violate this section if he has not, during the time
11 when three (3) or more vehicles are formed in line behind his vehicle, passed
12 a designated turnout or location where it would be safe and reasonable for
13 the vehicle to be pulled over.

14 SECTION 3. An emergency existing therefor, which emergency is hereby
15 declared to exist, this act shall be in full force and effect on and after
16 July 1, 2026.